

SH02

Notice of consolidation, sub-division, redemption of shares or re-conversion of stock into shares

☒ **What this form is for**
You may use this form to give
notice of consolidation,
sub-division, redemption of
shares or re-conversion of stock
into shares.

☐ **What this form is NOT for**
You cannot use this form to
notice of a conversion of sh
into stock.

WEDNESDAY



A71P8IO2

A08

14/03/2018

#113

COMPANIES HOUSE

1 Company details

Company number 0 9 9 6 5 2 9 7

Company name in full ALPHA FINANCIAL MARKETS CONSULTING PLC

→ **Filling in this form**
Please complete in typescript or in
bold black capitals.

All fields are mandatory unless
specified or indicated by *

2 Date of resolution

Date of resolution d1 d1 m1 m0 y2 y0 y1 y7

3 Consolidation

Please show the amendments to each class of share.

Class of shares (E.g. Ordinary/Preference etc.)	Previous share structure		New share structure	
	Number of issued shares	Nominal value of each share	Number of issued shares	Nominal value of each share

4 Sub-division

Please show the amendments to each class of share.

Class of shares (E.g. Ordinary/Preference etc.)	Previous share structure		New share structure	
	Number of issued shares	Nominal value of each share	Number of issued shares	Nominal value of each share
C1 SHARES	5544921	0.00001	0	0.00
C2 SHARES	2343123	0.00001	0	0.00
F SHARES	3102696	0.00001	0	0.00

5 Redemption

Please show the class number and nominal value of shares that have been
redeemed. Only redeemable shares can be redeemed.

Class of shares (E.g. Ordinary/Preference etc.)	Number of issued shares	Nominal value of each share

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Re-conversion

New share structure

Value of stock	Class of shares (E.g. Ordinary/Preference etc.)	Number of issued shares	Nominal value of each share

Statement of capital

Please use a Statement of Capital continuation page if necessary.

Currency	Class of shares	Number of shares	Aggregate nominal value (£, €, \$, etc)	Total aggregate amount unpaid, if any (£, €, \$, etc)
Complete a separate table for each currency	E.g. Ordinary/Preference etc.		Number of shares issued multiplied by nominal value	Including both the nominal value and any share premium

SEE CONTINUATION PAGE

	SEE CONTINUATION PAGE			
Totals				

Totals				

Totals				

Total number of shares	Total aggregate nominal value ^①	Total aggregate amount unpaid ^①
9137849101	49775.225075	0

1 Please list total aggregate values in different currencies separately.
For example: £100 + €100 + \$10 etc.

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Statement of capital (prescribed particulars of rights attached to shares) ①

Please give the prescribed particulars of rights attached to shares for each class of share shown in the share capital tables in **Section 7**.

Class of share

Prescribed particulars

①

SEE CONTINATION PAGES

Class of share

Prescribed particulars

①

Class of share

Prescribed particulars

①

① Prescribed particulars of rights attached to shares

The particulars are:

- particulars of any voting rights, including rights that arise only in certain circumstances;
- particulars of any rights, as respects dividends, to participate in a distribution;
- particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and
- whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder.

A separate table must be used for each class of share.

Please use a Statement of capital continuation page if necessary.

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Signature

I am signing this form on behalf of the company.

Signature

Signature

X

msbricker

X

This form may be signed by:

Director ②, Secretary, Person authorised ③, Administrator, Administrative Receiver, Receiver, Receiver manager, CIC manager.

② Societas Europaea

If the form is being filed on behalf of a Societas Europaea (SE) please delete 'director' and insert details of which organ of the SE the person signing has membership.

③ Person authorised

Under either section 270 or 274 of the Companies Act 2006.

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**Presenter information**

You do not have to give any contact information, but if you do it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.

Contact name **DC19/CAE.005-0004**

Company name **Squire Patton Boggs (UK) LLP**

Address **7 Devonshire Square**

Post town **London**

County/Region

Postcode

E	C	2	M	4	Y	H
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Country **England**

DX **136546 Bishopsgate 2**

Telephone **+44 (0)20 7655 1000**

**Checklist**

We may return forms completed incorrectly or with information missing.

Please make sure you have remembered the following:

- ☐ The company name and number match the information held on the public Register.
- ☐ You have entered the date of resolution in Section 2.
- ☐ Where applicable, you have completed Section 3, 4, 5 or 6.
- ☐ You have completed the statement of capital.
- ☐ You have signed the form.

**Important information**

Please note that all information on this form will appear on the public record.

**Where to send**

You may return this form to any Companies House address, however for expediency we advise you to return it to the appropriate address below:

For companies registered in England and Wales:
The Registrar of Companies, Companies House,
Crown Way, Cardiff, Wales, CF14 3UZ.
DX 33050 Cardiff.

For companies registered in Scotland:
The Registrar of Companies, Companies House,
Fourth floor, Edinburgh Quay 2,
139 Fountainbridge, Edinburgh, Scotland, EH3 9FF.
DX ED235 Edinburgh 1
or LP - 4 Edinburgh 2 (Legal Post).

For companies registered in Northern Ireland:
The Registrar of Companies, Companies House,
Second Floor, The Linenhall, 32-38 Linenhall Street,
Belfast, Northern Ireland, BT2 8BG.
DX 481 N.R. Belfast 1.

**Further information**

For further information, please see the guidance notes on the website at www.gov.uk/companieshouse or email enquiries@companieshouse.gov.uk

This form is available in an alternative format. Please visit the forms page on the website at www.gov.uk/companieshouse

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Statement of capital

Complete the table below to show the issued share capital.
Complete a separate table for each currency.

Currency Complete a separate table for each currency	Class of shares E.g. Ordinary/Preference etc.	Number of shares	Aggregate nominal value (£, €, \$, etc) Number of shares issued multiplied by nominal value	Total aggregate amount unpaid, if any (£, €, \$, etc) Including both the nominal value and any share premium
GBP	PREFERENCE SHARES	1100726	5.50363	
GBP	REDEEMABLE DEFERRED SHARES	9091318578	45456.59289	
GBP	ORDINARY SHARES	45425711	227.128555	
GBP	D SHARES	4086	4,086.00	
Totals		9137849101	49775.225075	

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Statement of capital (prescribed particulars of rights attached to shares) ①

Class of share	D SHARES	① Prescribed particulars of rights attached to shares The particulars are: a. particulars of any voting rights, including rights that arise only in certain circumstances; b. particulars of any rights, as respects dividends, to participate in a distribution; c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.
Prescribed particulars	(A) Subject to articles 7.1.4, 7.1.5 and 7.4 of the Company's articles and to any rights or restrictions for the time being attached to any class or classes of shares: - the A shares and the D shares (the "Voting Ordinary Shares") shall entitle any holder thereof to receive notice of, and to attend and speak, at any general meeting and on a poll each Voting Ordinary Share shall carry one vote; - the holders of the D shares (as a class) shall be entitled to cast 45% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of D shares the voting rights capable of being cast by the holders of the D shares shall be divided equally amongst all holders of the D Shares in issue. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the D shares (provided always that the provisions of article 7.1.5(b) of the Company's articles shall only apply in relation to the D shares in the event that article 7.1.6(b) of the Company's articles applies) in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; [Continues next page]	

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Statement of capital (prescribed particulars of rights attached to shares) ⑧

Class of share	D SHARES (CONTINUED)	⑧ Prescribed particulars of rights attached to shares The particulars are:
Prescribed particulars	(ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action. The only acts or omissions of the Company which will require a class consent of the D shares shall be as set out in Schedule Part 7D (Part A) of the Investment Agreement, and such class consent of the D shares may be given by the holders of a majority of the D shares then in issue (excluding any D shares in which any Leaver and/or any Permitted Transferee of any such Leaver holds any interest or to which article 7.4 of the Company's articles applies). If Leavers and/or Permitted Transferees of any Leaver hold interests in all of the D shares or if article 7.4 of the Company's article applies to all of the D shares, article 7.1.6(a) of the Company's articles shall not apply and instead article 7.1.5(b) of the Company's articles shall apply in respect of the D shares. (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the D shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares. [Continues next page]	a. particulars of any voting rights, including rights that arise only in certain circumstances; b. particulars of any rights, as respects dividends, to participate in a distribution; c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.

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Statement of capital (prescribed particulars of rights attached to shares) ①

Class of share	D SHARES (CONTINUED)	① Prescribed particulars of rights attached to shares
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share. (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.	The particulars are: - particulars of any voting rights, including rights that arise only in certain circumstances; - particulars of any rights, as respects dividends, to participate in a distribution; - particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and - whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.

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Statement of capital (prescribed particulars of rights attached to shares) ^{1b}

Class of share	REDEEMABLE DEFERRED SHARES	
Prescribed particulars	(A) The holders of Redeemable Deferred shares shall not be entitled to attend or vote at any general meeting of the Company. (B) No dividend may be paid in respect of any Redeemable Deferred Share. (C) The holders of Redeemable Deferred Shares shall not be entitled to receive, on a return of capital on liquidation or otherwise, the surplus assets of the Company remaining after payment of its liabilities. (D) Subject to the 2006 Act and of every other statute for the time being in force concerning companies and affecting the Company, the Company shall have the right at any time to redeem the whole or any number of the Redeemable Deferred Shares in issue. The Company shall pay in respect of each Redeemable Deferred Share redeemed the nominal value of the Redeemable Deferred Share. On the due date, the Company shall pay to each registered holder of Redeemable Deferred Shares the amount payable in respect of such redemption. On receipt of that amount, each such holder shall surrender to the Company the certificate for the shares that are to be redeemed (or an indemnity in a form reasonably satisfactory to the Board in respect of any lost share certificate) to be cancelled. If any certificate (or indemnity) so surrendered includes any shares that are not redeemable at that time, the Company shall issue a new share certificate for the balance of the shares not redeemable to the holder. If there is more than one holder of Redeemable Deferred Shares, any redemption shall be made among such holders pro rata (as nearly as possible) to their respective holdings of Redeemable Deferred Shares.	1 Prescribed particulars of rights attached to shares The particulars are: - particulars of any voting rights, including rights that arise only in certain circumstances; - particulars of any rights, as respects dividends, to participate in a distribution; - particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and - whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.

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Statement of capital (prescribed particulars of rights attached to shares) ⑧

Class of share	PREFERENCE SHARES	⑧ Prescribed particulars of rights attached to shares The particulars are: a. particulars of any voting rights, including rights that arise only in certain circumstances; b. particulars of any rights, as respects dividends, to participate in a distribution; c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.
Prescribed particulars	(A) The holders of Preference shares shall not be entitled to attend or vote at any general meeting of the Company. (B) No dividend may be paid in respect of any Preference Share. (C) Other than in the event that clause 23 of the Investment Agreement applies, in a winding-up of the Company from the assets of the Company available to the holders of shares the holders of Preference Shares (in respect of their Preference Shares only) shall (subject always to Article 7.3.11) receive in priority to any payment in respect of any other share an amount per Preference Share equal to (i) £1 (the "Principal Value") plus (ii) a sum equal to 8% per annum which shall be deemed to accrue on the Outstanding Value (as defined below) from day to day on the basis of a 365 day year (or a 366 day year in the case of a leap year) from the date of issue of the Preference Share until the earliest of (and including) the date of redemption of the relevant Preference Share and the date of winding-up of the Company. The Premium (if any) which has accrued as at each anniversary of the Investment Date will be compounded with the Principal Value outstanding immediately following such anniversary (and such Principal Value plus any such compounded sums from time to time shall be the "Outstanding Value"). The total sum calculated under (ii) (including any compounded sums (but excluding the Principal Value)) shall be deemed to be the "Premium" for the purpose of these Articles. Upon payment of the amounts referred to in this Article 7.3.2 the Preference Shares shall not be entitled to any further amount of capital or distribution. If the assets of the Company available to shareholders are less than the amount which would be due to all Preference Shares under the foregoing provisions of this Article 7.3.2 (the "Preference Proceeds"), those Preference Proceeds will be distributed in accordance with clause 23 of the Investment Agreement. [continues next page]	

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Statement of capital (prescribed particulars of rights attached to shares) ①

Class of share	PREFERENCE SHARES (CONTINUED)	① Prescribed particulars of rights attached to shares The particulars are:
Prescribed particulars	In the event of a Share Sale or a Drag Sale (other than in the event that clause 23 of Investment Agreement applies), the holders of Preference Shares (in respect only of the Preference Shares which they are selling) shall (subject always to Article 7.3.11) receive from the proceeds of the Share Sale or the Drag Sale available in respect of the shares being sold in priority to any other share an amount per Preference Share equal to the Principal Value plus the Premium (to be calculated up to (and including) the date of completion of the Share Sale or Drag Sale) and shall not be entitled to any further participation in the proceeds of the Share Sale or the Drag Sale. If the proceeds of the Share Sale or the Drag Sale available in respect of the share being sold are less than the amount which would be due under the foregoing provisions of this Article 7.3.3 in respect of the Preference Shares which are being sold (the "Preference Proceeds"), those Preference Proceeds will be distributed in accordance with clause 23 of the Investment Agreement. For the avoidance of any doubt, subject always to Article 7.3.11, the only value which a Preference Share shall be entitled to upon its realisation shall be (and shall not exceed) the amount determined and payable in accordance with and pursuant to the foregoing provisions of this Article 7.3.3 or Articles 7.3.6-7.3.10 or Article 40 or Articles 41.3-41.4 or Articles 42.4-42.6 or Articles 43.7-43.11. Subject to clause 23 of the Investment Agreement (if applicable), as between the holders of Preference Shares, the assets or proceeds due to them under Article 7.3.2 or 7.3.3 (as the case may be) shall be allocated across all of the relevant Preference Shares pari passu and pro rata to the number of Preference Shares held by each holder. (D) 7.3.6. Subject to the 2006 Act and of every other statute for the time being in force concerning companies and affecting the Company, the Relevant Preference Shares shall be redeemed in full on the Loan Note Repayment Date by the Company giving notice of the redemption to the relevant holder(s) of Preference Shares (the "Redemption Notice"). Those shares shall be redeemed immediately following the issue of the Redemption Notice(s) by the Company (the "Redemption Date"). [Continues next page]	a. particulars of any voting rights, including rights that arise only in certain circumstances; b. particulars of any rights, as respects dividends, to participate in a distribution; c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.

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Statement of capital (prescribed particulars of rights attached to shares) ①

Class of share	PREFERENCE SHARES (CONTINUED)	
Prescribed particulars	On the Redemption Date, subject always to Article 7.3.11, the Company shall pay in respect of each Relevant Preference Share the Principal Value plus the Premium (to be calculated up to (and including) the Redemption Date). On any Redemption Date the Company shall pay to each registered holder of Relevant Preference Shares the amount payable in respect of such redemption. On receipt of that amount, each such holder shall surrender to the Company the certificate for the shares that are to be redeemed (or an indemnity in a form reasonably satisfactory to the Board in respect of any lost share certificate) to be cancelled. If any certificate (or indemnity) so surrendered includes any shares that are not redeemable at that time, the Company shall issue a new share certificate for the balance of the shares not redeemable to the holder. If there is more than one holder of Relevant Preference Shares, any redemption shall be made among such holders pro rata (as nearly as possible) to their respective holdings of Preference Shares. If, on any Redemption Date, the Company is prohibited from redeeming some or all of the Relevant Preference Shares then due to be redeemed, the Company shall redeem such number of Relevant Preference Shares as it is lawfully able to redeem. If there is more than one holder whose Preference Shares are due to be redeemed, those Relevant Preference Shares shall be redeemed in proportion as nearly as possible to their existing holdings of Preference Shares and the Company shall redeem the balance of those shares as soon as practicable. For so long as the Company is prohibited from redeeming Relevant Preference Shares, and some or all of the Relevant Preference Shares have not been redeemed, the Premium thereon (other than in respect of any Preference Shares to which the definition of Preference Share Leaver Date apply) shall continue to accrue down to and including the date on which such shares are actually redeemed. If the Company fails to make any partial redemption of Relevant Preference Shares, then subsequent redemptions of Preference Shares shall be deemed to be of those Preference Shares that first became due for redemption. [Continues next page]	① Prescribed particulars of rights attached to shares The particulars are: a. particulars of any voting rights, including rights that arise only in certain circumstances; b. particulars of any rights, as respects dividends, to participate in a distribution; c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.

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Statement of capital (prescribed particulars of rights attached to shares) ①

Class of share	PREFERENCE SHARES (CONTINUED)	① Prescribed particulars of rights attached to shares
Prescribed particulars	Preference Shares held by or on behalf of a Leaver Unless otherwise agreed by the Remuneration Committee, the following provisions shall apply upon the Termination Date in respect of any Bad Leaver or Very Bad Leaver (but for the avoidance of any doubt the Preference Shares held by a Good Leaver or to which a Good Leaver is entitled shall not be affected by the following provisions of this Article 7.3.11): (a) if a Preference Share Leaver Date has arisen as a result of the relevant person being a Very Bad Leaver, the Preference Shares which are the subject of any such event as determined within the definition of Preference Share Leaver Date shall cease to be entitled to any of the accrued or future rights set out in these Articles (including without limitation any Premium or any of the accrued or future rights in respect of capital/ exit proceeds or redemption set out above) and those Preference Shares shall automatically (and without any need for approval from any shareholder) convert on a one for one basis into Deferred Shares immediately upon notice to that effect being served on the Company by an Investor Director or by the holders of the majority of the A Shares; (b) if a Preference Share Leaver Date arises as a result of the relevant person being a Bad Leaver, the Preference Shares which are the subject of any such event as determined in accordance with the definition of Preference Share Leaver Date shall cease to be entitled to any accrued or future amount of Premium and (subject to a Bad Leaver not being a Very Bad Leaver in which case Article 7.3.11(a) shall apply) the amount per Preference Share due in respect of such Preference Shares in terms of Articles 7.3.2, 7.3.3 or upon redemption of any such Preference Share shall be restricted to £1 per Preference Share. For the avoidance of any doubt the Preference Shares held by a Bad Leaver or a Good Leaver shall not be subject to compulsory transfer under Article 37. [Continues next page]	The particulars are: - particulars of any voting rights, including rights that arise only in certain circumstances; - particulars of any rights, as respects dividends, to participate in a distribution; - particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and - whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.

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Statement of capital (prescribed particulars of rights attached to shares) ①

Class of share	PREFERENCE SHARES (CONTINUED)	① Prescribed particulars of rights attached to shares The particulars are:
Prescribed particulars	Any deferred shares arising under Article 7.3.11(a) shall have the rights and are subject to the restrictions set out below, namely: (a) no right to participate in or receive any dividends declared, made or paid by the Company; (b) no right to receive notice of or attend or vote at any general or class meeting (other than a class meeting of the Deferred Shares) of the Company; (c) A Shareholder Consent shall be required for any transfer of Deferred Shares; (d) the right on a return of assets in a winding-up to a repayment of the capital paid up on such shares after the rights of all holders of Equity Shares have been discharged in full and a sum of £100,000 has been paid in respect of each issued Equity Share in the capital of the Company, but no other right to participate in the assets of the Company; and (e) the holders of the majority of the A Shares shall have irrevocable authority at any time to appoint any person to execute on behalf of the holders of the deferred shares a transfer thereof and/or an agreement to transfer the same, without making any payment to the holders thereof, to such person as the holders of the majority of the A Shares may determine as custodian thereof and to cancel and/or purchase the same (in accordance with the provisions of statute) without making any payment to or obtaining the sanction of the holders thereof and pending the transfer and/or cancellation and/or purchase to retain the certificate for such shares; but so that none of the rights or restrictions attached to such Deferred Shares shall be or be deemed to be varied or abrogated in any way by the passing or coming into effect of any resolution of the Company to reduce its share capital and/or reduce or cancel (as the case may be) its share premium account (including, without limitation, a resolution to reduce the capital paid up on, and to cancel, such Deferred Shares). [Continues next page]	a. particulars of any voting rights, including rights that arise only in certain circumstances; b. particulars of any rights, as respects dividends, to participate in a distribution; c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.

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Statement of capital (prescribed particulars of rights attached to shares) ①

Class of share	PREFERENCE SHARES (CONTINUED)	① Prescribed particulars of rights attached to shares The particulars are: a. particulars of any voting rights, including rights that arise only in certain circumstances; b. particulars of any rights, as respects dividends, to participate in a distribution; c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.
Prescribed particulars	Interaction with the Loan Notes and the Finance Documents In the event of a variation of any of the rights or other terms of the Loan Notes in accordance with the Loan Note Instruments (the "Loan Note Changes") and the Loan Note Changes being approved if such approval is so required under the Investment Agreement and/or any of the Finance Documents, the following provisions of this Article 7.3.13 shall apply: (a) each holder of Preference Shares shall exercise all and any class voting rights attaching to the Preference Shares held by him as directed in writing by the holders of the majority of the A Shares in order to implement changes to the rights and other terms of any Preference Share the effects of which are equivalent to the effects of any Loan Note Change; (b) for the avoidance of doubt, a reduction in the value repayable in respect of Preference Shares under Articles 7.3.2-7.3.4 and/or 7.3.6-7.3.10 shall be possible (if the Loan Note Change (so approved, as aforesaid) relates to an equivalent proportionate reduction in the value repayable in respect of Loan Notes) and a conversion of Preference Shares into ordinary or other shares (if the Loan Note Change (so approved, as aforesaid) relates to an equivalent proportionate capitalisation of Loan Notes). [Continues next page]	

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re-conversion of stock into shares

8 Statement of capital (prescribed particulars of rights attached to shares) ①		
Class of share	PREFERENCE SHARES (CONTINUED)	① Prescribed particulars of rights attached to shares The particulars are: a. particulars of any voting rights, including rights that arise only in certain circumstances; b. particulars of any rights, as respects dividends, to participate in a distribution; c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.
Prescribed particulars	In the event that any right or term of any of the Loan Notes is restricted by the operation of any term of the Investment Agreement and/or any Finance Documents (the "Loan Note Restriction"), each holder of Preference Shares (i) agrees that the effect of that Loan Note Restriction shall be deemed to apply to have the same effect on the rights and terms of the Preference Shares and (ii) shall exercise all and any class voting rights attaching to the Preference Shares held by him as directed in writing by the holders of the majority of the A Shares in order to implement changes to the rights and other terms of any Preference Share the effect of which are equivalent to the effect of the Loan Note Restriction. If any act of the Company requires a class consent of the Preference Shares in terms of the 2006 Act, the holders of Preference Shares hereby agree the following (subject to obtaining any approval which is required in respect of such act under clause 8.5 of the Investment Agreement): (a) if such act of the Company gives rise to a Loan Note Change (as defined in Article 7.3.13); or (b) if such act of the Company does not require the consent of holders of Loan Notes in terms of any Loan Note Instrument, each holder of Preference Shares hereby appoints as his attorney and agent any person nominated by the holders of the majority of the A Shares to give any such class consent in his name and on his behalf.	

SH02 - continuation page

Notice of consolidation, sub-division, redemption of shares or
re-conversion of stock into shares

8 Statement of capital (prescribed particulars of rights attached to shares) ①

Class of share	ORDINARY SHARES	① Prescribed particulars of rights attached to shares The particulars are: a. particulars of any voting rights, including rights that arise only in certain circumstances; b. particulars of any rights, as respects dividends, to participate in a distribution; c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.
Prescribed particulars	Each share has full rights in the Company in respect to voting, dividends and distribution. The shares are not redeemable.	